

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1037

By: Kendrix

AS INTRODUCED

An Act relating to sunset; amending 59 O.S. 2021, Section 1873, as amended by Section 1, Chapter 88, O.S.L. 2023 (59 O.S. Supp. 2024, Section 1873), which relates to the Oklahoma Board of Licensed Alcohol and Drug Counselors; re-creating the Board; and modifying the termination date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1873, as amended by Section 1, Chapter 88, O.S.L. 2023 (59 O.S. Supp. 2024, Section 1873), is amended to read as follows:

Section 1873. A. There is hereby re-created, to continue until July 1, ~~2025~~ 2026, in accordance with the provisions of the Oklahoma Sunset Law, the Oklahoma Board of Licensed Alcohol and Drug Counselors, consisting of seven (7) members, to be appointed by the Governor, with the advice and consent of the Senate, as follows:

1. a. Six members who shall be alcohol and drug counselors certified by an entity recognized to do professional alcohol and drug counseling certification in this state; provided, however, five of such members shall

1 subsequently secure licensure and one such member
2 shall subsequently secure certification, pursuant to
3 the provisions of the Licensed Alcohol and Drug
4 Counselors Act, no later than January 1, 2005.

5 b. Thereafter, five members shall be licensed alcohol and
6 drug counselors at the time of appointment, and one
7 member shall be certified as an alcohol and drug
8 counselor at the time of appointment.

9 c. Pursuant to the provisions of this paragraph, the
10 Governor shall appoint:

11 (1) four members from a list of names submitted by
12 the Oklahoma Drug and Alcohol Professional
13 Counselors Association,

14 (2) one member from a list of names submitted by the
15 Oklahoma Substance Abuse Services Alliance, and

16 (3) one member from a list of names submitted by the
17 Oklahoma Citizen Advocates for Recovery and
18 Treatment Association.

19 d. One member shall be appointed from and shall represent
20 the general public. Such member shall be a resident
21 of this state who has attained the age of majority and
22 shall not be, nor shall ever have been, a licensed or
23 certified alcohol and drug counselor, or the spouse of
24 a licensed or certified alcohol and drug counselor, or
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1 a person who has ever had any material financial
2 interest in the provision of alcohol and drug
3 counseling services or has engaged in any activity
4 directly related to the practice of alcohol and drug
5 counseling.

6 2. The composition of the Board shall include five members who
7 hold a master's or higher degree and one member whose highest degree
8 held is a bachelor's degree.

9 3. The Governor shall appoint the members to the Board no later
10 than July 1, 2004.

11 B. Each member of the Board appointed as a licensed alcohol and
12 drug counselor shall:

13 1. Be certified or licensed to engage in the practice of
14 alcohol and drug counseling in this state and shall be in good
15 standing; and

16 2. Have at least three (3) years of experience in the practice
17 of alcohol and drug counseling in this state.

18 C. Two of the members initially appointed shall serve three-
19 year terms; two shall serve four-year terms and three shall serve
20 five-year terms, as designated by the Governor. Thereafter, the
21 terms of all members shall be five (5) years.

22 D. A vacancy on the Board shall be filled in the same manner as
23 the original appointment for the balance of the unexpired term.
24 Members may succeed themselves but shall serve no more than two
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1 consecutive terms. Each member shall serve until a successor is
2 appointed and qualified.

3 E. Members of the Board may be removed from office for one or
4 more of the following reasons:

5 1. The refusal or inability for any reason to perform the
6 duties of a Board member in an efficient, responsible and
7 professional manner;

8 2. The misuse of office for pecuniary or material gain or for
9 personal advantage for self or another;

10 3. A violation of the laws or rules governing the practice of
11 alcohol and drug counseling; or

12 4. Conviction of a felony as verified by a certified copy of
13 the record of the court of conviction.

14 F. Members of the Board shall serve without compensation, but
15 shall be reimbursed for actual and necessary travel expenses as
16 provided in the State Travel Reimbursement Act.

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